

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN DYNAMIC RANDOM
ACCESS MEMORY (DRAM) DEVICES,
PRODUCTS CONTAINING THE SAME,
AND COMPONENTS THEREOF (III)**

Investigation No. 337-TA-____ Dkt. 3930

**NON-PARTY GOOGLE LLC'S RESPONSE TO THE COMMISSION'S SOLICITATION
OF COMMENTS RELATING TO THE PUBLIC INTEREST**

Non-Party Google LLC (“Google”) respectfully submits the following comments in response to the Commission’s Notice of Receipt of Complaint and Solicitation of Comments Relating to the Public Interest, dated August 17, 2026, regarding the Complaint (ITC Docket No. 337-3930) filed by Netlist, Inc. (“Netlist”) against Respondents Micron Technology, Inc., Micron Semiconductor Products, Inc., Hewlett Packard Enterprise Co., Lenovo Group Ltd., Lenovo (United States) Inc., and Super Micro Computer, Inc., pursuant to Section 337 of the Tariff Act of 1930.

As a preliminary matter, Netlist’s infringement allegations are directed at DRAM, specifically DDR5 Dual In-line Memory Modules (“DIMM”) manufactured by Micron Technology, Inc. and Micron Semiconductor Products, Inc. (collectively, “Micron”). Notably, the Commission specially designated public interest issues to the ALJs in two recent investigations brought by Netlist which centered around alleged infringement of Samsung’s DDR5 DIMMs.¹

As a non-party, Google focuses this statement on the Commission’s request for information related to: (1) “whether complainant, complainant’s licensees, and/or third party suppliers have the capacity to replace the volume of articles potentially subject to the requested exclusion order and/or a cease and desist order within a commercially reasonable time”; (2) “how the articles potentially subject to the requested remedial orders are used in the United States”; and (3) “any public health, safety, or welfare concerns in the United States relating to the requested remedial orders.”²

¹ *Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof*, Inv. No. 337-TA-1472, Notice of Institution at 3 (Dec. 29, 2025); *Certain Dynamic Random Access Memory (DRAM) Devices, Products Containing the Same, and Components Thereof (II)*, Inv. No. 337-TA-1511, Notice of Institution at 3 (July 15, 2026).

² Solicitation of Comments Relating to the Public Interest, 91 Fed. Reg. 53278 (August 17, 2026).

Given well-documented supply constraints restricting access to DDR5 DRAM in the United States, and because DDR5 DRAM is crucial in advancing the statutory public interest factors, Google submits that, if an Investigation is instituted, fact-finding regarding public interest should be delegated by the Commission to the ALJ.

I. The Requested Remedial Orders Threaten to Exacerbate a Preexisting Global Supply Shortage of DDR5 DIMMs

The DRAM market is facing a structural shortage unlike anything in the semiconductor industry's history.³ Major industry analysts project that meaningful supply relief across the semiconductor industry will not arrive until at least 2028, and potentially not until 2030.⁴

Micron already provides considerable DDR5 DIMM volumes for downstream customers that rely on these modules.⁵ Removing Micron's supply, even temporarily, would disrupt the DDR5 DIMM supply chain⁶ and prevent Micron from meeting its existing supply commitments to its customers. Disrupting Micron's supply further would interfere with all downstream customers who currently purchase Micron DDR5 DIMMs for their own use. The effect of an exclusion order would further create cascading operational failures across sectors millions of Americans depend on daily.

Excluding Micron from the domestic semiconductor market is of particular concern where no other DDR5 DIMM supplier can replace Micron's existing supply on a reasonable timeline.

³ https://s25.q4cdn.com/621799436/files/doc_events/2026/06/Micron_Q3_26_Earnings_Deck.pdf ("DRAM and NAND industry demand continues to significantly exceed industry supply" with "tight conditions to persist beyond calendar 2027 as a result of...structural supply constraints").

⁴ See Kearney, *The Great Memory Reallocation* (Kearney May 7, 2026), at <https://www.kenarney.com/service/product-excellence-and-renewal-lab/article/the-great-memory-reallocation>; IEEE, *How and When the Memory Chip Shortage Will End* (IEEE Feb. 10, 2026), at <https://spectrum.ieee.org/dram-shortage> ("there's no relief until 2028"); Digital Trends (Jun. 28, 2026), at <https://www.digitaltrends.com/computing/the-memory-crisis-isnt-going-to-ease-and-you-will-pay-the-price-for-it-says-a-research-firm/>; <https://intelligence.supplyframe.com/industry-experts-dram-shortage-2030/>.

⁵ See <https://counterpointresearch.com/en/insights/ai-demand-reshapes-dram-rankings-in-q2-2026> (Global DRAM Revenue by market share in Q2 2026 lists Micron at 25% of total market share, behind only Samsung at 39% and SK hynix at 26%).

⁶ Such a disruption would further exacerbate supply disruptions that have persisted since the COVID-19 pandemic. See ey.com/en_us/insights/supply-chain/how-covid-19-impacted-supply-chains-and-what-comes-next.

Currently, there are three main suppliers of DDR5 DIMMs: (1) Micron, (2) SK hynix, and (3) Samsung.⁷ While Netlist suggests its licensees SK hynix and Samsung could “replace the volume of [Micron] articles” (Netlist’s PI Statement at 5), there is no indication that either supplier could step in and replace Micron’s existing ~25% market share in the event of an exclusion order. SK hynix and Samsung have already sold out of their available DRAM supply through at least 2027.⁸ There is also no indication that Netlist itself could bridge the gap left by Micron’s exclusion. And any mention of other manufacturers like “Kingston Technology Company, Inc., PNY Technologies Inc., and VisionTek Products, LLC” (Netlist’s PI Statement at 4) is speculative at best given there is no indication these suppliers could, alone or in combination, fill Micron’s current place among the top three suppliers. In short, the existing supply constraints facing the market are unlikely to self-correct, and there is no reasonable expectation that another supplier could fill the gap left by removing nearly one fourth of an already constrained industry.

II. The Requested Remedial Relief Implicates Public Interest Insofar As Exclusion of Micron’s DDR5 DIMMs Contradicts National Policy Favoring AI Innovation

Executive Order 14179 announced a national policy “to sustain and enhance America’s global AI dominance” and directed the executive branch to “remov[e] barriers” to AI leadership.⁹ “Consistent with that policy,” the Office of the Attorney General created an AI Litigation Task Force, whose sole purpose is to challenge state AI laws that are inconsistent with AI national policy.¹⁰ The Trump Administration’s July 2025 release of “Winning the AI Race: America’s AI Action Plan” laid

⁷ <https://www.techinsights.com/blog/industry-leading-ddr5-technology>.

⁸ <https://www.tweaktown.com/news/113004/memory-capacity-for-all-of-2027-has-reportedly-been-booked-and-sold-with-no-more-dram-or-hbm-available/index.html> (“Samsung, SK hynix, and Micron’s DRAM and HBM memory capacity for 2027 is now sold out with no additional supply available”).

⁹ Exec. Order No. 14179, Removing Barriers to American Leadership in AI, 90 Fed. Reg. 8741 (Jan. 23, 2025), available at <https://www.whitehouse.gov/presidential-actions/2025/01/removing-barriers-to-american-leadership-in-artificial-intelligence/>.

¹⁰ January 9, 2026 Memorandum, available at <https://www.justice.gov/ag/media/1422986/dl?inline>.

out a comprehensive blueprint identifying AI acceleration, infrastructure build-out, and international AI diplomacy as the three pillars of national strategy favoring AI innovation.¹¹ In March 2026, the Trump Administration unveiled a National AI Legislative Framework, reaffirming the Administration’s “commit[ment] to winning the AI race to [secure] economic competitiveness, and national security.”¹² On June 2, 2026, President Trump signed yet another executive order directed to “promot[ing] AI innovation and security by working collaboratively with the private sector.”¹³

Micron’s DDR5 DIMMs are designed for use with “next-generation AI systems” because “[t]he rapid proliferation of large language models (LLMs), agentic AI, real-time inference and high-core-count CPU workloads is driving an urgent need for greater enterprise server memory capacity, higher bandwidth and improved power efficiency.”¹⁴

The requested remedial relief would directly interfere with the Trump Administration’s national policy emphasizing AI growth by disrupting the supply of critical memory products to government-recognized, leading contributors to domestic AI innovation and infrastructure.¹⁵ The requested relief thus directly threatens the national imperative of enhancing “America’s global AI dominance” to promote economic competitiveness and national security.¹⁶ The public interest factors weigh decisively against awarding a remedy here.

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¹¹ White House, *Winning the AI Race: America’s AI Action Plan* (July 23, 2025), available at [whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf](https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf).

¹² White House, *President Donald J. Trump Unveils National AI Legislative Framework* (Mar. 20, 2026), at [whitehouse.gov/releases/2026/03/president-donald-j-trump-unveils-national-ai-legislative-framework/](https://www.whitehouse.gov/releases/2026/03/president-donald-j-trump-unveils-national-ai-legislative-framework/).

¹³ Exec. Order No. 14363, *Promoting Advanced Artificial Intelligence Innovation and Security* (June 2026), at [whitehouse.gov/presidential-actions/2026/06/promoting-advanced-artificial-intelligence-innovation-and-security](https://www.whitehouse.gov/presidential-actions/2026/06/promoting-advanced-artificial-intelligence-innovation-and-security).

¹⁴ <https://investors.micron.com/news/press-release/2026/Micron-Redefines-AI-Performance-With-Sampling-of-256GB-DDR5-Server-Module/default.aspx>.

¹⁵ *See, e.g.*, White House, *President Trump Solidifies U.S. Position as Leader in AI* (Jul. 15, 2025), available at <https://www.whitehouse.gov/releases/2025/07/president-trump-solidifies-u-s-position-as-leader-in-ai/>.

¹⁶ Exec. Order No. 14179, *Removing Barriers to American Leadership in AI*, 90 Fed. Reg. 8741 (Jan. 23, 2025), available at <https://www.whitehouse.gov/presidential-actions/2025/01/removing-barriers-to-american-leadership-in-artificial-intelligence/>.

To the extent the Commission institutes an Investigation, development of a full record on the public interest is necessary and fact-finding should be delegated by the Commission to the ALJ. The Commission should also consult with government agencies that may be affected by the requested remedial relief, such as the Department of War, the White House Executive Office of Science and Technology Policy, the Department of Energy, the National Cancer Institute, the Central Intelligence Agency, and others. *See* 19 C.F.R. § 210.50(b)(1)-(2).

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Respectfully submitted,

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